

Rajasthan Schools (Regulation of Fee) Rules, 2017

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State of Rajasthan - Act

Rajasthan Schools (Regulation of Fee) Rules, 2017

RAJASTHAN

India

Rajasthan Schools (Regulation of Fee) Rules, 2017

Rule RAJASTHAN-SCHOOLS-REGULATION-OF-FEE-RULES-2017 of 2017

Published on 8 February 2017

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[Note: The original publication document is not available and this content could not be verified.]

Rajasthan Schools (Regulation of Fee) Rules, 2017

Published vide Notification No. G.S.R.114, dated 8.2.2017

G.S.R.114. - In exercise of the powers conferred by section 19 of the Rajasthan Schools (Regulation of Fee) Act, 2016 (Act

No. 14 of 2016

), the State Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Rajasthan Schools (Regulation of Fee) Rules, 2017.

(2)

They shall come into force from the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Act" Means the Rajasthan Schools (Regulation of Fee) Act, 2016, (Act No. 14 of 2016

);

(b)

"Form" means Form appended to these rules; and

(c)

"Student" means student studying in first class to twelfth class.

(2)

The words and expressions used but not defined in these rules shall have the same meanings as assigned to them in the Act.

3.

Procedure for conducting meeting of Parent-Teachers Association.

(1)

The Principal or Head of the School shall be the Chairperson of the Parent-Teachers Association constituted under sub-section (1) of section 4 of the Act. The Secretary of the Parent-Teachers Association shall be a Senior Teacher of the School nominated by the Principal or Head of the School.

(2)

The Chairperson of the Parent-Teachers Association shall call the meeting-of the Association. The Secretary shall issue notice of the meeting in Form-I, fifteen days in advance, to all members of the Parent-Teachers Association.

(3)

The notice shall contain the place, time and agenda of the meeting. The notice shall be served on each member of the Parent-Teachers Association in the manner as the Chairperson of the Parent-Teachers Association thinks fit and shall be displayed on the notice board of the school. It shall also be circulated in each classroom and uploaded on the website of the school, if such facility is available.

(4)

The quorum for the meeting shall be ten percent of the total strength of members, in absence of quorum, the Chairperson shall adjourn the meeting for half an hour and if quorum is not complete, the meeting shall be adjourned and shall be recalled after fifteen days.

(5)

Every meeting shall be preside over by the Chairperson and in his absenCe, by a Presiding Officer chosen by the members present amongst themselves.

(6)

The Secretary of the Parent-Teachers Association shall prepare the minutes of the meeting within fifteen days from the date of the meeting. The minutes shall be displayed on the notice board of the school and uploaded on the website of the school, if such facility is available. The copy of minutes of the meeting shall also be made available to the District Education Officer concerned and the State Government, as and when required.

4.

Duties and functions of Parent-Teachers Association.

- The Association shall discharge the following duties and perform the following functions, namely:-

(i)

to get information about Tuition fees, Term fees and fees for co-curricular activities as decided by the School Level Fee Committee;

(ii)

to observe completion of syllabus as per the planning;

(iii)

to assist school for planning of other co-curricular activities; and

(iv)

to assess the needs of co-curricular activities.

5.

Constitution of School Level Fee Committee.

(1)

Within ten days of the constitution of Parent-Teachers Association, wide publicity about the process' of constitution of the School Level Fee Committee shall be given in each class room of the school. The notice, of not less than seven days, for constitution of the School Level Fee Committee served on each member of the Parent-Teachers Association in the manner as the Chairperson of the Parent-Teachers Association thinks fit and shall be displayed on the notice board of the school. It shall also be circulated in each classroom and uploaded on the website of the school, if such facility is available.

(2)

The applications shall be invited from the willing parents in written or online, if such facility is available, before the date fixed for draw of lottery.

(3)

A lottery shall be randomly drawn from the applications received. The detailed minutes of the meeting where lottery has been drawn shall be circulated to all the parents and shall be made forwarded to the District Education Officer concerned along with the list of members of the School Level Fee Committee.

6.

Duties and functions of School Level Fee Committee.

- The School Level Fee Committee shall, in addition to the powers and functions specified in the Act, discharge the following duties and perform the following functions, namely:-

(a)

to oversee the compliance of the provisions of the Act and rules made thereunder;

(b)

to take decision on proposals received from Management, regarding determination of fee within time specified in sub-section (3) of section 6 of the Act; and

(c)

to make available necessary documents to the Divisional Fee Regulatory Committee or Revision Committee, as the case may be, where appeal is filed by the Management.

7.

Meeting of the School Level Fee Committee.

(1)

The Chairperson of the School Level Fee Committee shall call the meetings of the School Level Fee Committee. The Secretary of the committee shall issue notice of meeting to the members of the School Level Fee Committee in Form-II. The notice shall be issued fifteen days before the date of meeting.

(2)

The notice shall be sent to each member of the School Level Fee Committee by registered post or delivered through any other mode. The acknowledgement of notice shall be preserved for a period of one year.

(3)

No business shall be transacted in the meeting of the School Level Fee Committee unless four members are present out of which at least two shall be the parent members of the School Level Fee Committee. If there is no quorum, the Chairperson of the School Level Fee Committee shall adjourn the meeting. The adjourned meeting shall be recalled again after the lapse of ten days from the date of the meeting which is adjourned.

(4)

The Secretary of the School Level Fee Committee shall prepare minutes of the meeting and circulate the same to all the members within fifteen days from the date of the meeting.

(5)

The minutes of the meeting shall be made available to the District Education Officer or Deputy Director concerned, as and when required.

(6)

If a parent member is absent for three consecutive meetings, his membership shall be deemed to be cancelled and such vacancy shall be filled in by lottery, from amongst the applications received for that academic year under rule 5.

8.

Procedure to refer proposal to Divisional Fee Regulatory Committee and to file appeal before Divisional Fee Regulatory Committee and Revision Committee under section 6 of the Act.

(1)

The Management of the school shall submit fee proposal to the School Level Fee Committee at least six months before the commencement of the next academic year in Form-III.

(2)

If the School Level Fee Committee fails to decide the fees within the period specified in sub-section (3) of section 6 of the Act, the management shall immediately refer the matter in Form-1V, along-with the proposal submitted to the School Level Fee Committee, to the Divisional Fee Regulatory Committee, within thirty days of expiry of the period specified in sub-section (3) of section 6 of the Act, for its decision.

(3)

The management may prefer an appeal in Form-V against the decision of the School Level Fee Committee within 30 days from the date of decision of the School Level Fee Committee.

(4)

The management or School Level Fee Committee aggrieved by the decision of the Divisional Fee Regulatory Committee in appeal or reference may, within thirty days from the date of such decision, prefer an appeal, in Form-VI, before the Revision Committee along with the proposal of fees submitted by management and the copy of the decision of the School Level Fee Committee and Divisional Fee Regulatory Committee.

9.

Sitting allowance to the non official members of the Divisional Fee Regulatory Committee and Revision Committee.

- Sitting allowance to representatives of private schools and representatives of parents nominated in the Divisional Fee Regulatory Committee and Revision Committee shall be paid as decided by the State Government, from time to time.

10.

Additional factors for determination of fee.

- The following factors shall be considered while deciding the fee in addition to the factors specified in section 8 of the Act, namely:-

(i)

facilities made available by the school under e-governance i.e. hardware and software facilities;

(ii)

strength of students;

(iii)

other facilities made available to students such as swimming pool, horse riding, shooting, archery and performing art etc.;

(iv)

supply of books, notebooks, etc. and other educational material provided to students;

(v)

provision of meal or snacks; and

(vi)

any other factor submitted by the Management before the School Level Fee Committee.

11.

Maintenance of accounts and other records.

(1)

Every private school shall,-

(a)

maintain separate accounts for different kinds of transactions, such as, fees collected, grants received, financial assistance received, payments of salary to staff, purchase of machinery and equipment, laboratory apparatus and consumables, library books, stationery, computers, software and other expenditure incurred;

(b)

keep the registers, accounts and records within the premises of their school as they shall be made available at all reasonable time for inspection; and

(c)

preserve the accounts maintained, together with all vouchers relating to various items or receipts and expenditure, until the audit of accounts is over and objections, if any, raised are settled.

(2)

Every private school shall, in addition to accounts and records specified in sub-rule (1), maintain the following, namely:-

(a)

General Register;

(b)

Admission Register;

(c)

Fee Receipt;

(d)

Fee Collection Register;

(e)

Cash Book;

(f)

Library and Reading Room Account;

(g)

Staff Attendance Register and Staff Salary Register;

(h)

Students Attendance Register;

(i)

Voucher File;

(j)

Cheque Register;

(k)

Acquaintance Roll;

(1)

Stock Registers;

(m)

Transfer Certificate Book;

(n)

Examination Fees Collection Receipt;

(o)

Contingency Expenditure Register;

(p)

Asset Register; and

(q)

Building Rent Register.

(3)

Every private school shall also maintain the other record of the institution as per the orders issued by the Government, from time to time.

Form-I

[See rule 3(2)]

Notice for the meeting of Parent-Teachers Association

..... (Name of School)

No:

Dated

To, Mrs/Ms Member of Parent-Teachers Association

Subject: Notice for the meeting of Parent-Teachers Association

Sir/Madam,

With reference to the subject cited above, as per the provisions of the clause (e) of sub-section (2) of section 4 of the Rajasthan Schools (Regulation of Fee) Act, 2016 (Act 14 of 2016

) and rule 3(2) of the Rajasthan. Schools (Regulation of Fee) Rules, 2017, the meeting of Parent-Teachers Association is scheduled on the (Date) at : (Time) at (Place). Agenda of the meeting is enclosed herewith. You are requested to attend the meeting in time.

Yours faithfully,

Secretary Parent-Teachers Association Name of School:

Form-II

[See rule 7(1)]

Notice for meeting of School Level Fee Committee

..... (Name of School)

No

Dated

To, Mrs/Ms Member of the School Level Fee Committee

Subject: Notice for the Meeting of School Level Fee Committee.

Sir/Madam,

With reference to the subject cited above, as per the provisions of the section 4(2)(d) of the Rajasthan Schools (Regulation of Fee) Act, 2016 (Act 14 of 2016

) and rule 7(1) of the Rajasthan Schools (Regulation of Fee) Rules, 2017, the meeting of School Level Fee Committee of (Name of School) is Scheduled on (Date) at hrs.) at (Place) to discuss the Fee proposal of the Management of the school and take an appropriate decision thereupon.

Yours faithfully,

Secretary, School Level Fee Committee. Name of School:

Form-III

[See rule 8(1)]

Proposal of fee to be forwarded to the School Level Fee Committee under section 6(2).

To,

The School Level Fee Committee of (Name of School)

Subject: Proposal of fee structure for the academic year

Sir/Madam,

The management of (Name of School) vide it's resolution No. dated is pleased to forward the fee structure for the academic year as detailed below:-

1. Name of Trust or Society:
2. Name of School:
3. UDISE No. :
4. Name of Board (RBSE or CBSE or Other) :
5. Medium:
6. Standard from to
7. Number of Divisions/Sections:
8. Number of Students:
9. Class-wise proposed fee:

Sr.No.

Class

Last Year's Fee

Proposed Fee

Difference (4-3)

Percentage of Fee hike

Remark

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Note: Item wise fee details

Yours faithfully, Secretary, Name of School: Name of Trust or Society: Date:

.....

Principal /Head Master Name of School: On behalf of Name of Trust or Society:

Form- IV

[See rule 8(2)]

Reference to the Divisional Fee Regulatory Committee for its decision under section 6(4).

From:

Name of School:

Address :

Date :

To, Ex-Officio Member Secretary, Divisional Fee Regulatory Committee,

..... Division.

Sub. : Reference of Fee Structure under rule 8(2) of the Rajasthan Schools (Regulation of Fee) Rules, 2017.

Sir/Madam,

The management of (Name of School) vide its resolution No. dated. has taken a decision. to revise the fee structure for the academic year as detailed below:-

The proposal to revise the fee structure was presented to the School Level Fee Committee of our (Name of School) dated as per the provisions of rule 8(1). Since the School Level Fee Committee has not communicated its approval or remarks on the proposal, the management of (Name of School) hereby submits to issue appropriate decision in respect of fee structure. The details of the proposed fee-structure and justification for the same are accompanied with relevant documents.

1. Name of the Trust or Society :

2. Name of the School :

3. UDISE No. :

4. Board Type (RBSE or CBSE or Others) :

5. Medium of instruction :

6. Standards from to

7. Number of Divisions/Sections :

8. Number of Students :

9. Class-wise fee structure:

Sr.No.

Class

Last Year's Fee

Proposed Fee

Difference (4-3)

Percentage of Fee hike

Remark

(1)

(2)

(3)
(4)
(5)
(6)
(7)

Yours faithfully, Secretary. Name of School: Name of Trust or Society : Date :

Principal or Head Master Name of School: On behalf of Name of Trust or Society:

Copy to School Level Fee Committee

Form-V

[See rule 8(3)]

Appeal to the Divisional Fee Regulatory Committee

From: Name of School: Address: Date:

To, Ex-Officio Member-Secretary, Divisional Fee Regulatory Committee, Division.

Subject: Appeal on the Revision of Fee Structure under rule 8(3) of the Rajasthan Schools (Regulation of Fee) Rules, 2017.

Sir/Madam,

The management of (Name of School) vide it's resolution No. dated. has taken a decision to revise the fee structure for the academic year as detailed below:-

Since there is a difference in the fee structure proposed by the management and the fee structure approved by the School Level Fee Committee, the management of School Name has made an appeal for appropriate decision. The details of the proposed fee structure and justification for the same is detailed in the accompanying documents.

1. Name of the Trust or Society :

2. Name of the School :

3. UDISE No. :

4. Name of the Board (RBSE or CBSE or Others) :

5. Medium of instruction :

6. Standards from to

7. Number of Divisions/Sections:

8. Number of students:

9. Class-wise fee structure:

Sr.No.

Class

Last Year's Fee

Proposed Fee

Difference (4-3)

Percentage of Fee hike

Remark

(1)
(2)
(3)
(4)
(5)
(6)
(7)

Yours faithfully, Secretary Name of School: Name of Trust or Society : Date :

Principal / Head Master Name of School: On behalf of (Name of the Trust or Society) :

Form-VI

[See rule 8(4)]

Appeal to Revision Committee under section 6(7) of the Act

From : Name of School: Address: Date:

To, Ex- Officio Member-Secretary, Revision Committee,

Sub: Appeal under section 6 (7) of the Rajasthan Schools (Regulation of Fee) Act 2016 and rule 8 (4) of the Rajasthan Schools (Regulation of Fee) Rules, 2017.

Sir/Madam,

The Management/School Level Fee Committee of (Name of School) aggrieved by the decision of Divisional Fee Regulatory Committee No. dated hereby submits its appeal as detailed in the accompanying statements and supported by the documentary evidence, for the consideration of the Revision Committee :

1. Name of the Trust or Society:
2. Name of the School:
3. UDISE No. :
4. Name of the Board (RBSE or CBSE or Others):
5. Medium of instruction:
6. Standards from to
7. Number of Divisions/Sections:
8. Number of students:
9. Class-wise fee structure:

Sr.No.

Class

Last Year's Fee

Proposed Fee

Difference (4-3)

Percentage of Fee hike

Remark

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Yours faithfully, Secretary. Name of School: Name of Trust or Society : Date :

Principal / Head Master Name of School: On behalf of (Name of the Trust or Society) :

Related AI tags, queries and research notes

Translation